

24STLC07556 24STLC07556

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C09%2F03%2F2026

Source SHA-256: c6a7cfd286989c62f17fc4d7b9486946bb24a57652c0a8141182b5647651b609

Case Number: 24STLC07556 Hearing Date: September 3, 2026 Dept: 25

HEARING

DATE: Thurs., September 3, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Patriot Bank v. Foster COMP FILED: 10-18-24

CASE NUMBER: 24STLC07556

NOTICE: OK

PROCEEDINGS: MOTION TO SET ASIDE CCP 664.6 DISMISSAL, AND
ENTER JUDGMENT AGAINST DEFENDANT

MOVING PARTY: Plaintiff

Patriot Bank

RESP. PARTY: None

MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT PURSUANT TO STIPULATION

(Code Civ. Proc., § 664.6)

TENTATIVE RULING:

The Court GRANTS Patriot Bank's motion
to set aside the dismissal and enter judgment pursuant to the stipulation.

The dismissal entered on February 7,
2025 is hereby SET ASIDE AND VACATED.

Judgement is entered against Foster in the amount of \$21,732.65, reflecting \$25,672.65 in principal and \$508.00 in court costs, less \$4,448.00 for payments received.

Bank is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 31, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 31, 2026 ☐ Late ☒
None

ANALYSIS:

Patriot

Bank sued Teresita Foster for breach of contract. Foster answered. The parties then settled and stipulated that Foster would pay \$556.00 on January 30, 2025, make 22 monthly payments of \$556.00 starting in February 2025, and to make a final payment of \$557.00 in December 2026. The Court dismissed this action without prejudice and retained jurisdiction to enforce the stipulation pursuant to Code of Civil Procedure section 664.6. Foster made payments up to August 2025, but has failed to pay since then. Bank therefore moves to set aside the dismissal and enter judgment against Foster pursuant to the stipulation. Foster has not opposed the

motion.

Code of

Civil Procedure section 664.6, subdivision (a), allows a court to enter judgment pursuant to the terms of a written, signed settlement. If the parties agree, a court may dismiss the case without prejudice and retain jurisdiction to enforce the settlement until full performance is made. (Ibid.)

The

stipulation between Bank and Foster is valid and enforceable under Code of Civil Procedure section 664.6. In the event of breach, the stipulation provides that Foster is liable for \$25,672.65, plus \$508.00 in costs, minus any payments Foster made before breaching.

Bank

requests a judgment of \$21,732.65 against Foster, reflecting \$25,672.65 plus \$508.00 in court costs, less \$4,448.00 for payments received from Foster. That amount is supported by Bank's motion, stipulation, and memorandum of costs.

The

Court therefore GRANTS Bank's motion to set aside the dismissal entered on February 7, 2025 and enters judgment pursuant to the stipulation in the amount of \$21,732.65 against Foster.

Bank is

to give notice.